

Defendant's motion to deem request for admissions, set one, as admitted

Defendant moves deem request for admissions, set one, as admitted. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to deem request for admissions, set one, as admitted is denied as moot. Under 2033.280 (c), it is mandatory that the court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated this motion. Therefore, defendant's request for monetary sanction is granted, in the amount of \$860.

11. S-CV-0053338 Demas, John v. Saetes, Peter

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$102,492 and costs of \$8,706.42 for a total of \$111,198.42 against defendant Peter Saetes. Plaintiffs also move for post-judgment interest from November 7, 2025 pursuant to Code of Civil Procedure section 685.010. No opposition has been filed.

Preliminarily, the court previously continued this motion because defendant Peter Saetes had only been served electronically rather than by mail. At the prior hearing on June 16, 2026, defendant Saetes appeared and stipulated to electronic service for this motion. Moreover, plaintiffs filed proofs of service on June 16, 2026 showing mailed service as well.

The threshold question is whether plaintiff is entitled to recover fees. This action is based on a written 2014 promissory note, which includes an attorneys' fees provision:

10. Attorneys' Fees. If any action or other proceeding is brought for the enforcement of this Note, or because of an alleged dispute, breach, default or misrepresentation in connection with any of the provisions of this Note, the successful or prevailing party or parties shall be entitled to recover reasonable attorneys' fees and other costs incurred in that action or proceeding, in addition to any other relief to which the party may be entitled.

(Complaint, Exh. A.)

A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Here, after a two-day court trial, the court found in favor of plaintiffs as against defendant Saetes in the total amount of \$1,444,867.55. (Judgment, filed Nov. 5, 2025.) The judgment also specified, "Plaintiffs are the prevailing parties in this action and are entitled to costs of suit. Plaintiffs are also entitled to seek attorneys' fees pursuant to the provisions of the 2014 Promissory Note by noticed motion." (*Id.* at p. 3:4–6.) As this

court has already found, plaintiffs are the prevailing parties and are therefore entitled to recover reasonable attorneys' fees.

The court must next address whether the \$102,492 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, *supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Scott E. Radcliffe and the exhibits thereto. Counsel declares hourly rates ranging from \$450 to \$495, which the court finds to be reasonable. Turning next to the question of whether the number of hours incurred were reasonable, the court has carefully reviewed the declaration of counsel Radcliffe and Exhibit A thereto, which supports 227.7 hours of attorney time incurred in this litigation. The court finds the unchallenged number of hours to be reasonable and awards plaintiffs attorneys' fees in the amount of \$102,492.

As to costs, plaintiffs filed a costs memorandum on November 24, 2025 requesting costs in the amount of \$8,706.42. Plaintiffs filed the accompanying costs worksheet on December 10, 2025. No motion to tax costs was timely filed. (Cal. Rules of Court, rule 3.1700.) Plaintiffs are awarded costs in the amount of \$8,706.42.

As to post-judgment interest, plaintiffs request post-judgment interest accrued since November 7, 2025. Plaintiffs rely on Code of Civil Procedure section 685.010, which provides interest accrues at a rate of 10 percent per annum on the principal amount of an unsatisfied money judgment. As interest accrues automatically by operation of law and because plaintiffs present no reason why a separate court order is necessary, plaintiffs' request is unsupported by any good cause to grant the requested order. Also, plaintiffs present no evidence as to any payments made toward the principal damages which would impact the amount of post-judgment interest. For these reasons, the request for an order awarding post-judgment interest is denied without prejudice.

Based on the foregoing, the unopposed motion is granted in part. Plaintiffs are awarded attorneys' fees in the amount of \$102,492 and costs of \$8,706.42. The motion is otherwise denied.

Motion for Charging Order

Plaintiffs and judgment creditors move for a charging order against the transferable interest of defendant and judgment debtor Peter Saetes pursuant to Corporations Code section 17705.03 and Code of Civil Procedure section 708.310. More specifically, plaintiffs seek a charging order against Mr. Saetes' member interests in two limited liability corporations: Sierra College Brace 18, LLC and Darkhorse Estates, LLC. John Manikas, who is no longer a party to this action having been dismissed on June 17, 2025,

opposes the motion to the extent it seeks to encumber, charge, or recover any of the judgment from his member interest. Plaintiffs' reply clarifies the motion pertains only to the member interests of defendant Saetes.

Preliminarily, the court previously continued this motion because defendant Peter Saetes had only been served electronically rather than by mail. Since then, plaintiffs filed proofs of service on June 16, 2026 showing mailed service to defendant Saetes.

“If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor's interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor's interest pursuant to Section . . . 17705.03 of the Corporations Code.” (Code Civ. Proc., § 708.310.) Corporations Code section 17705.03 authorizes the court, on application of a judgment creditor, to “enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on a judgment debtor's transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor.” (Corp. Code, § 17705.03, subd. (a).) To effectuate a charging order, the court may appoint a receiver of the distributions subject to the charging order or make all other orders necessary to give effect to the charging order. (*Id.* at subd. (b).) “The court may appoint a receiver to enforce the judgment where the judgment creditor shows that, considering the interests of both the judgment creditor and the judgment debtor, the appointment of a receiver is a reasonable method to obtain the fair and orderly satisfaction of the judgment.” (Code Civ. Proc., § 708.620.)

Here, plaintiffs present evidence, and a review of the court file confirms, that they are the prevailing parties in this action and the judgment creditors and defendant Saetes is the judgment debtor. Plaintiffs present evidence Saetes is a managing member of Sierra College Brace 18, LLC and Darkhorse Estates, LLC. Plaintiffs argue that because Saetes is a managing member of both limited liability companies, the court must appoint a receiver and cite to Corporations Code section 17705.03(b)(2). However, the cited source—summarized in the paragraph above—does not support plaintiffs' claim that the court “must” appoint a receiver. Plaintiffs submit insufficient evidence to support that appointment of a receiver is necessary or would even be helpful at this stage.

Based on the foregoing, the motion for charging order is granted against defendant Saetes' member interests in Sierra College Brace 18, LLC and Darkhorse Estates, LLC. The motion for appointment of a receiver is denied without prejudice.

12. S-CV-0055573 Moore, Rachella v. CRIBL Inc.

Defendant's motion for protective order

The motion is dropped in light of the moving party's request.